MEMORANDUM OF AGREEMENT
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Minimizing Excessing

In order to minimize the impact on the employees and the operation, the parties agree to the following provisions to curtail or minimize the involuntary excessing and reassignment of employees outside their installation or craft for the term of the **2018** National Agreement.

Employees will have the opportunity to voluntarily transfer pursuant to the provisions of the Memorandum of Understanding Re: *Transfer Opportunities to Minimize Excessing*. For purposes of this identified opportunity, the restriction in Item 7 of that MOU is lifted so that withheld vacancies are available.

The Postal Service will review its operations, 1) to create new and/or more efficient assignments within the installation that might lessen the excessing need, and 2) to look for scheduling opportunities to offer assignments which are consistent with local operational needs and reduce/eliminate the need to excess.

When employees are not able to be placed within their installation and craft, the parties will meet to discuss options to avoid or minimize involuntary excessing, such as modifying work schedules, and will determine what options will be implemented. If there remains a need to place employees after exhaustion of any agreed-to actions, excessing outside the installation or craft must be to an assignment within forty (40) miles from the losing installation, or fifty (50) miles if reassignment within forty (40) miles is not feasible. If in unusual situations there are insufficient residual vacancies available for placement within fifty (50) miles, the parties will determine what steps may be taken.

Withheld jobs not filled under the above procedure will remain vacant until it is determined that they no longer need to be withheld.

If a need still exists to reassign employees who have been notified of pending excessing after the steps above have been taken, such employees given notice of reassignment pursuant to Article 12 prior to the effective date of this Agreement may be reassigned.

These provisions are applicable except as provided for in the Step 4 resolution in case number Q10C-4Q-C 14317802/ HQTT20140774 or as modified by any other agreements.

Anyone currently scheduled to be excessed who wishes to go will be allowed to do so.

Any disputes arising out of this Memorandum will be handled in accordance with the Memorandum of Understanding Re: *Administrative Dispute Resolution Procedures*.

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MEMORANDUM OF UNDERSTANDING
BETWEEN THE
UNITED STATES POSTAL SERVICE
AND THE
AMERICAN POSTAL WORKERS UNION, AFL-CIO

Re: Rehabilitation Issues

The parties have been unable to agree as to temporary assignment, reassignment or reemployment in APWU represented crafts of employees injured on or off duty or employees with job-related illnesses. Accordingly, the parties agree as follows:

1) The parties will submit to the Department of Justice's Office of Legal Counsel ("OLC") proposed language concerning a possible resolution of the above dispute.
2) In the event the Department of Justice either determines that the language does not comply with applicable law or declines to issue any determination, the parties agree to submit to interest arbitration the dispute concerning the temporary assignment, reassignment or reemployment in APWU represented crafts of employees injured on duty or employees with job-related illnesses.